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General Comment

This Post represents only the introduction to my comments and is meaningless without the attached file that contains the proposed partial rule set.

Introduction:

AI is, and will be one of the most important tools and one of the most deadly weapons in human history.

The atom bomb is a powerful and lethal weapon. Our decisions on when to use the atom bomb are based on our perception of reality and the facts we think we know. AI is uniquely positioned to alter our perception of reality and what facts we think we know. As such, the potential consequences of the misuse of AI exceed the destructive power of nuclear war.

The benefits of AI are equally potent. Humans are limited in how much we can learn and retain over a lifetime. We are born knowing nothing and only become experts over most of a lifetime. As Abraham Lincoln said, "The graveyards are full of indispensable men." AI has nearly instant access to most accumulated human knowledge and can be used to retain knowledge between generations. As such, we are poised to have indispensable AI experts that surpass merely one human lifetime of accumulated knowledge. AI's have the promise to exponentially accelerate all forms of research, extend lives, and unarguably reshape the world.

Please see proposed rule sets in sections 1, 2, 3 of the attached document.

Attachments

AI Notes

Introduction:

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With great power comes great responsibility:

AI is an existential misinformation threat. No individual or organization should be able to wield mass misinformation of the type that AI can create, and is creating today.

Today, AI is being used in overt scams and fraud over phone, text, e-mail, fake web pages, and web advertising.

Democracy is dependent on an educated populous that has access to facts and should not be influenced by misinformation or AI based propaganda.

A simple requirement to label AI generated material will significantly curb the ability of AI to be used for misinformation or propaganda.

Rules:

(1) Known AI Labeling:

All material partially or wholly created by AI or containing significant AI created content shall be marked and labeled as "Created by AI". This requirement shall be applicable to all media including but not limited to text, audio, pictures, video, Virtual Reality, or any other communication type.

Enforcement of this labeling requirement should be rabidly enforced both domestically and internationally.

Knowing the reliability of information and where information comes from is absolutely essential to the functioning of a Democracy and safety of citizens.

(2) Control and Responsibility for AI actions:

AI units can and will act autonomously. Therefore, a chain of responsibility must be enforced. Every AI that has access to the general public or population shall be registered and have a designated “Owner and Operator”. A responsible cognizant HUMAN must be the Owner and Operator of every AI. An AI may never be the Owner and Operator of an AI. A nebulous faceless agency, organization, or corporation may never be the Owner and Operator of an AI.

The Owner and Operator is defined as an individual Human or Corporation that is personally responsible for the actions of the AI. In the case of a Corporate Owner and Operator, the company President or CEO shall be the responsible Human.

In the case of AI technology that is imbedded into a product and the AI cannot be readily altered by the end user: The Owner & Operator is defined as the Human that operates the product. However, the Creator of the AI is responsible for AI actions that are inherent to the AI design and occur without the consent or intent of the Owner and Operator.

Every AI shall have a designated AI Creator or Manufacturer. This Creator shall be a cognizant HUMAN responsible for the creation of the AI. In the case where an AI is not substantially altered by the Owner and Operator, the Creator is responsible for defects, and for AI actions inherent to the AI design which occur without the consent or intent of the Owner and Operator. Humans that substantially alter an AI unit become the Creator or Manufacturer of the new altered AI version. The Owner and Operator of an AI that creates another AI becomes the Creator of the new AI with all of the responsibilities of that designation.

AI units that are for research or hobby use and are not accessible by the general population should not require registration. However, the Owner and Operator of the AI is still responsible for the actions of the AI.

AI Owner and Operators, as well as AI Creators shall be registered in a readily and publicly accessible manner.

(2.a) Considerations for AI controlled Vehicles:

As an example, consider the AI used in autonomous ground vehicles. The AI is not modified by the end user. The AI Owner and Operator is the vehicle Owner and Operator. The vehicle Owner and Operator is responsible for commanding the AI to drive to a physical address. If the AI steers the

vehicle off of a cliff, the AI Creator is responsible for this action because this action is inherent to the AI design and occurred without the consent or intent of the Owner and Operator.

Licensing of autonomous vehicles: Humans take a driving test to be licensed to operate a motor vehicle. AI should be licensed to operate motor vehicles. The State or Federal government should determine a standard for licensing of AI versions to operate motor vehicles. A common standard of licensing will result in standardized and reliable AI drivers. The simplest method of licensing would be to run the AI driver through a physical driving test in the vehicle to be operated, similar to a human driver test. A simulated driving test could also be used, as long as the simulation utilized the same sensor set that the physical vehicle uses, and the simulation accurately depicts the reality of real-life driving conditions. AI driver licensing should be re-accomplished for every AI update that substantially changes the driving characteristics. AI driver licensing should not be a long and onerous process. The AI licensing test should take no longer than a human driving test.

The autonomous vehicle AI Creator or Manufacturer, or government agencies may collect statistical data on the safety of AI drivers to determine if defects in the AI are present, or to conduct continuous improvement activities.

In the special case of ground-based vehicles, States may want to consider a no-fault collision policy for AI enabled vehicles where no injuries or fatalities are involved. AI controlled vehicles are statistically safer than human controlled vehicles and vehicle manufacturers should not retain massive collision liability while making the roads safer.

(3) Limits on AI authority in organizations:

No human shall ever be under the management or obligated authority of an AI. A Human leader or manager may use an AI as a tool or communication device subject to the rules stated above in section 1 and 2. However, all authority is derived from a specific responsible Human in the organization. Additionally, the responsible Human is the Owner and Operator of an AI that projects the human's authority. As such, the human Owner and Operator is personally responsible for the dictates of the AI.

(3.a) AI units that are acting on the authority of a human should reference the name and contact information of that human in all correspondence.

Example: A human manager uses an AI to construct a project plan and schedule. The AI then sends individual taskings to workers based on the plan and schedule. The AI directs a worker to perform a hazardous action that results in personal injury. The Human manager shall be personally responsible for the situation.